



File No.: EXP202211618

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: Ms. A.A.A. (hereinafter the complainant) filed a complaint with the Catalan Data Protection Authority on 23/10/2022, and on 26/10/2022, the aforementioned Authority forwarded the case to the Spanish Agency for Data Protection on 26/10/2022 as it is the competent authority to address the matter. The complaint is directed against NANDIVALE, S.L. with NIF B66070012 (hereinafter the respondent). The grounds for the complaint are as follows: the complainant, mother of a 4-year-old girl who attended a birthday party organized at the respondent's venue on 07/08/2022, states that, without the consent of the parents of the attending children, images of the celebration were taken in which the minors appeared, and were published on the Instagram profile \*\*\*PROFILE.1 as a "story." The complainant, upon becoming aware of the publication of the images in which her daughter appeared, contacted the author of the publication through the messaging service provided by the service provider, in order to request that the publication be removed or that the faces of the minors be obscured; she states that she did not receive a response and that the publication was available for 24 hours, which is the default setting for Instagram "stories."

Along with the notification, a publication with images of the minors is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent, so that it could be analyzed and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 03/11/2022 as recorded in the acknowledgment of receipt in the file.

The respondent replied on 03/01/2023 stating in summary: that it is an entity dedicated to events and leisure activities as well as the organization of children's parties; that the complaint filed requested the removal of the video, and it was removed 24 hours after its publication, given that the request for removal was made through a friend request from the Instagram profile and not through the channel provided for this purpose, which is why it was not until after those hours that they had...

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awareness of said request; that it has been aware of the error that this situation entails; that measures have been intensified to prevent such situations by requiring consent and creating a protocol to avoid incidents; that the sanctioning procedure should be archived or a warning should be issued; alternatively, it should be considered a minor infraction.

On 05/01/2023, the document Risk Analysis in the Processing of Personal Data was submitted.

THIRD: On 09/01/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On 29/04/2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Articles 32.1 and 5.1.f) of the GDPR, classified under Articles 83.4.a) and 83.5.a) of the GDPR, with a warning. The receipt of the initiation agreement by the respondent is recorded.

FIFTH: After notification of the initiation agreement, the respondent did not submit a written statement of allegations within the established period, so the provisions of Article 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, apply, which in its subsection f) establishes that in the event of not making allegations within the stipulated period regarding the

content of the initiation agreement, it may be considered a proposal for resolution when it contains a precise statement regarding the attributed responsibility, therefore a Resolution is issued.

SEVENTH: From the actions taken in this procedure, the following has been established:

#### PROVEN FACTS

FIRST: The claimant, on 23/10/2022, filed a complaint with the Catalan Data Protection Authority, and on 26/10/2022, the aforementioned Authority forwarded it to the Spanish Agency for Data Protection as it is the competent authority to address the matter. The claimant stated that she is the mother of a minor and that on 07/08/2022, she attended a birthday party organized at the respondent's venue; she indicates that, without the express consent of the parents of the attending children, images of the celebration were taken in which the minors appeared, subsequently published on the Instagram profile \*\*\*PROFILE.1 as a "story"; as a result, she contacted the author of the publication through the messaging service provided by the service provider, in order to request that the publication be removed or that the faces of the minors be pixelated, without receiving a response while the publication remained available for 24 hours, which is the default duration for Instagram "stories."

SECOND: Screenshots of the Instagram account \*\*\*PROFILE.1 have been submitted, where the address, phone number, logo, and website can be seen, along with various photographs of the minors and parents at the celebration of a children's party.

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THIRD: Screenshots of the children's party (4 photographs) and the following messages from the mother of the minor sent to the account \*\*\*ACCOUNT.1 are provided:

"Hello, I am one of the mothers who attended the birthday today. I did not give consent to upload images where my daughter appears. We have not even given consent for the recording of images, and to upload them you should have blurred the faces of the minors. Therefore, I would ask you either to blur her face when re-uploading the videos or to delete the stories where she is clearly identified. She is the girl on the right who is most visible. Thank you."

"Hello, I wrote to you before."

"I am copying again what I wrote before."

Hello, I am one of the mothers who attended the birthday today. I did not give consent to upload images where my daughter appears. We have not even given consent for the recording of images, and to upload them you should have blurred the faces of the minors. Therefore, I would ask you either to blur her face when re-uploading the videos or to delete the stories where she is clearly identified. She is the girl on the right who is most visible. Thank you. This may be the first time you are faced with this situation, but capturing images of minors and uploading them to social media is classified as a crime with fines of up to 300,000 euros. I do not want images of my daughter on the internet."

FOURTH: The respondent in a document dated 31/01/2023 stated, "It has always been the intention of 'XXXXXXX' to handle the personal data entrusted to it with the utmost guarantees, and it has been aware of the error that this situation entails, and it has proceeded to rectify this situation in a manner that complies with the requirements set forth by data protection regulations and, consequently, to be able to handle the data of the individuals who trust them with the greatest guarantees, as has always been its intention."

FIFTH: The respondent submitted on 05/01/2023 a Risk Analysis in the Processing of Personal Data of Nanvidale, S.L. and subsequently on 31/01/2023 the Announcement Poster of the Video Surveillance Zone in accordance with the GDPR and a Form for Information and Consent for the processing of personal data of Clients. Additionally, the respondent's Privacy Policy is included in the file.

#### LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, in its Article 64 “Agreement to initiate sanctioning procedures,” provides:

“1. The initiation agreement shall be communicated to the instructor of the procedure, with the transfer of any actions that exist in this regard, and shall be notified to the interested parties, understanding in all cases that this includes the accused.

Likewise, the initiation shall be communicated to the complainant when the regulatory norms of the procedure so provide.

2. The initiation agreement must contain at least:

- a) Identification of the person or persons presumably responsible.
- b) The facts that motivate the initiation of the procedure, its possible qualification, and the sanctions that may correspond, without prejudice to what results from the instruction.
- c) Identification of the instructor and, where appropriate, the Secretary of the procedure, with express indication of their recusal regime.
- d) The competent body for the resolution of the procedure and the norm that attributes such competence, indicating the possibility that the presumed responsible party may voluntarily acknowledge their responsibility, with the effects provided in Article 85.
- e) Provisional measures that have been agreed upon by the competent body to initiate the sanctioning procedure, without prejudice to those that may be adopted during it in accordance with Article 56.
- f) Indication of the right to make allegations and to be heard in the procedure and the deadlines for exercising these rights, as well as an indication that, in the event of not making allegations within the stipulated period regarding the content of the initiation agreement, it may be considered a proposal for resolution when it contains a precise pronouncement regarding the responsibility attributed.

3. Exceptionally, when at the time of issuing the initiation agreement there are not sufficient elements for the initial qualification of the facts that motivate the initiation of the procedure, the aforementioned qualification may be carried out in a later phase by means of the preparation of a Statement of Charges, which must be notified to the interested parties.”

In application of the previous provision and considering that no allegations have been made against the initiation agreement, it is appropriate to resolve the initiated procedure.

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III

The reported facts materialize in the taking of images of an event featuring minors and their publication on the Instagram profile \*\*\*PROFILE.1 as a "story," without evidence of consent from their parents.

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case; (...)"

It should be noted that the physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

It is therefore necessary to analyze whether the processing of personal data (image of physical persons) carried out through the recording and dissemination, in which minors are featured, on social networks is in accordance with the provisions of the GDPR.

Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

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The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

And Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify their agreement to the processing of personal data relating to them."

On the other hand, Article 92 of the LOPDGDD, Protection of minors' data on the Internet, states that:

"Educational centers and any natural or legal persons that carry out activities in which minors participate shall guarantee the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services.

When such publication or dissemination is to take place through social networks or equivalent services, they must have the consent of the minor or their legal representatives, in accordance with the provisions of Article 7 of this organic law."

#### IV

It should be noted that the processing of data requires the existence of a legal basis that legitimizes it. In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its holder, in particular, when it is necessary for the performance of a contract to which the affected party is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the controller or by a third party,

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provided that the interests or the fundamental rights and freedoms of the affected party requiring the protection of such data do not prevail over those interests. The processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In this case, the respondent regarding the processing of personal data, neither prior to nor subsequent to the infringement, nor in its Privacy Policy or in the Risk Analysis, provides for the processing carried out: disseminating or publishing images of the celebrations on social media.

On the other hand, regarding the publication of images, it is not specified where it is planned (respondent's website, social media, etc.), and concerning the consent they convey in their response, nothing is stated about this specific processing, whether it collects consent from parents in the case of minors under 14 years old or consent from minors over 14 years old, differentiating this age circumstance (It is also not stated in the case of adults whether their consent is collected for the publication of their images, etc.).

Therefore, in the case examined, there is no accredited basis for legitimacy for the processing of minors' data.

#### V

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to sanction, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

And in its Article 72, it considers for the purposes of prescription that they are: "Very serious infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

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b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.

(...)"

## VI

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;
  - b) the intentionality or negligence in the infringement;
  - c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;
  - d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
  - e) any previous infringement committed by the data controller or processor;
  - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
  - g) the categories of personal data affected by the infringement;
  - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
  - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
  - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
  - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.
- In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” establishes that:

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“2. According to the provisions set forth in Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

- According to the transcribed provisions, for the purpose of determining the amount of the sanction for the infringement classified in Article 83.5.a) and Article 6.1 of the GDPR for which the respondent is held responsible, the following factors are considered concurrent as aggravating circumstances:

The categories of personal data affected by the infringement; it should not be forgotten that we are dealing with the infringement of a fundamental right aggravated by the category of data processed, as the image being disseminated is of minors (Article 83.2.g) of the GDPR).

The intent or negligence in the infringement. This circumstance is connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations; the SAN of 17/10/2007 can be cited, which, although issued before the entry into force of the GDPR, is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence" (Article 83.2.b) of the GDPR).

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on NANDIVALE, S.L., with NIF B66070012, for an infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR, a fine of €10,000 (ten thousand euros).

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SECOND: NOTIFY this resolution to NANDIVALE, S.L.

Warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with

documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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[sedeagpd.gob.es](http://sedeagpd.gob.es)

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Mar España Martí  
Director of the Spanish Agency for Data Protection  
C/ Jorge Juan, 6  
[www.aepd.es](http://www.aepd.es)  
28001 – Madrid  
[sedeagpd.gob.es](http://sedeagpd.gob.es)